

shall not include any of the stricken claims or stricken allegations against the Moving Defendants. Plaintiff is reminded that after a ruling on a demurrer, she cannot add additional causes of action or new parties without first seeking and obtaining leave from Court with a noticed motion. (See Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023 [ruling that adding new cause of action after demurrer is improper]; People v. Clausen (1967) 248 Cal. App. 2d 770, 785-876 [finding that adding new party after demurrer is improper]; Cal. Rules of Court, rule 3.1324.)

(ROA 395, 4/1/2025 Minute Order.)

On May 1, 2025, Plaintiff filed her First Amended Complaint (FAC). (ROA 448.) But the FAC failed to comply with the April 1, 2025, ruling because Plaintiff included allegations that were found in violation of Section 425.16.

Moving Defendants filed two Motions to address the improper allegations included in the FAC: (1) a regular motion to strike under Code of Civil Procedure § 436 to strike the improperly included allegations that were already addressed in the first Anti-SLAPP motion (ROA 519); and (2) a new Anti-SLAPP Motion under Code of Civil Procedure § 425.16 (ROA 538).

The Court granted the regular motion to strike on September 24, 2025. (ROA 626, "...the motion to strike portions of the FAC as set forth on pages 2-11 of the motion to strike (ROA 519) is granted without leave to amend".)

Pending at that time was the new Anti-SLAPP motion directed to the FAC. (See ROA 538.) By the time that motion came for hearing, it was moot due

to the ruling on the motion to strike. (See ROA 680.)

Moving Defendants now want \$24,652.50 in attorney fees and \$60 in costs for having to file the second Anti-SLAPP Motion.

The Court notes that it already awarded Moving Defendants \$38,120 in reasonable attorney's fees and \$271.35 in costs for prevailing on the initial Anti-SLAPP motion directed to the Complaint. (ROA 648.)

Code of Civil Procedure section 425.16 provides that a prevailing defendant on a special motion to strike is entitled to recover reasonable attorney fees and costs. (Code Civ. Proc., § 425.16, subd. (c); City of Los Angeles v. Animal Defense League (2006) 135 Cal.App.4th 606, 627.) When a plaintiff voluntarily dismisses the action after the special motion to strike has been filed and before the trial court hears or rules on the motion, the court continues to have jurisdiction over the case, for the limited purpose of ruling on a defendant's motion for attorney fees and costs. (Law Offices of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869, 879, 881.)

However, there was no voluntary dismissal; the second Anti-SLAPP was duplicative of the first.

Moving Defendants cite Pfeiffer Venice Properties v. Bernard (2002) 101 Cal.App.4th 211 to argue that they are entitled to attorney's fees for their second motion directed to the FAC. But Pfeiffer dealt with a dismissal of the moving party/complaint prior to the hearing on the anti-SLAPP. These are not facts similar to the instant case.

Moving Defendants provide no support for their contention that they are entitled to more attorney's

		fees for enforcing a prior court order. Plaintiff included the stricken language in the FAC, there was no new analysis or adjudication needed. Thus, this Motion is denied. Moving Defendants are ordered to serve notice.
54	<i>Off calendar</i>	
55	<i>Neach vs. Pacheco</i>	The motion by Plaintiff/Cross-Defendant Brian Neach (“Neach”) for an order granting summary judgment against the Cross-Complaint filed by Cross-Complainant Rodric Anthony Pacheco (“Pacheco”) is DENIED. Neach’s alternative motion for summary adjudication of four issues is also DENIED. As an initial matter, the Court notes Neach did not identify each issue for summary adjudication in his Separate Statement. (Neach’s Separate Statement, ROA No. 223.) “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Ct., Rule 3.1350(b).) Neach’s notice states Neach is seeking summary adjudication on each of Pacheco’s four causes of action on the ground that they are each barred by the applicable statute of limitations. (Notice, 1:9-19.) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion. (Cal. Rules of Ct., Rule 3.1350(d)(1)(B).)